

		present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming.” (<i>Taggares v. Superior Court</i> (1998) 62 Cal.App.4th 94, 105.) In addition to the present motion, Plaintiff has filed 14 additional discovery motions. The motions include three motions to quash, a motion to compel further responses to special interrogatories, and several motions to compel production of documents that involve numerous document requests against multiple defendants. Defendants have allegedly not produced any documents and have also asserted the attorney-client and/or attorney work product privilege to most of the discovery at issue. Based on the foregoing, the Court finds good cause to appoint a discovery referee. Plaintiff shall submit a proposed order appointing a mutually agreed upon discovery referee before July 31, 2026. In the event the parties fail to mutually agree upon a discovery referee, the parties are ORDERED to each submit a list of three proposed discovery referees from which the Court will appoint a discovery referee, before August 14, 2026. The Court now sets an OSC re: Compliance with Court Order (Selection of Discovery Referee) for September 10, 2026, at 9:30 a.m. in Department C12. If the Discovery Referee is selected by the Court (or agreed upon by the parties) before that date, the Court will automatically vacate the Court date. Additionally, the Discovery motions currently on calendar for August 7, 2026, are continued to November 6, 2026. THIS DECISION IS FINAL Plaintiff to give notice of this ruling.
2.	Noria vs. Mason Reconstruction LLC 25-01498751	Motion to Be Relieved as Counsel of Record The motion of attorneys Joshua White and Allen Ho of Laurel Employment Law to withdraw as attorneys of record for Plaintiff Edwardo Noria is DENIED without prejudice.

		“Before filing any document, a party must serve . . . one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule.” (CRC, Rule 8.817, subd. (a)(1).) In addition, “[t]he party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . .” (CRC, Rule 8.817, subd. (a)(2).) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (CRC, Rule 3.1300, subd. (c).) Moving attorneys’ prior motion was denied due to lack of proof of service. Again, moving attorneys have failed to attach a valid proof of service, attaching only a Certified Mail Receipt. However, there is no proof of service to indicate what was served on Plaintiff on this date. Accordingly, the motion is again DENIED without prejudice for failure to file a valid proof of service. THIS RULING IS FINAL Moving Plaintiff’s counsel to give notice.
3.	Gietter vs. Corniche Sur Mer Homeowners Association 25-01523200	Motion for Attorney Fees Plaintiffs Michael Gietter and Patricia Gietter’s motion for attorney fees is DENIED. (Code Civ. Proc., § 425.16, subd. (c)(1) [“If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to Section 128.5”].) First, moving plaintiffs have not complied with the “safe harbor” provisions of Code Civ. Proc., § 128.5, subd. (f)(1)(B), nor provided any evidence (as opposed to argument) that such compliance was impractical. (<i>Zarate v. McDaniel</i> (2023) 97 Cal.App.5th 484, 490-491.) Second, moving plaintiffs do not argue that defendant Corniche Sur Mer Homeowners Association’s prior special motion to strike was solely intended to cause unnecessary delay, and have not satisfactorily shown that said motion was frivolous. (Code Civ. Proc., § 425.16, subd. (c)(1) [requirements for attorney fees to prevailing plaintiffs on anti-SLAPP motion]; <i>Gerbosi v. Gaims, Weil, West & Epstein, LLP</i> (2011) 193 Cal.App.4th 435, 450 [“Frivolous in this context means that any reasonable attorney would agree the motion was totally